

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Sara Griffin	Team: Squad #04	CCRB Case #: 201809184	☐ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Sunday, 11/04/2018 10:50 AM	Location of Incident: Bronx River Highway, near Exit 4	18 Mo. SOL 12/19/2020	Precinct: 43
Date/Time CV Reported Sun, 11/04/2018 8:23 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Sun, 11/04/2018 8:23 PM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Natasha Donalds	667	925204	040 DET
2. DT3 Kevin Golden	4278	948034	040 DET

Officer(s)	Allegation	Investigator Recommendation
A . DT3 Kevin Golden	Discourtesy: Detective Kevin Golden spoke discourteously to § 87(2)(b)	A . Unfounded
B . DT3 Natasha Donalds	Discourtesy: Detective Natasha Donalds spoke discourteously to § 87(2)(b)	B . Unfounded
C . DT3 Natasha Donalds	Abuse: Detective Natasha Donalds took a photograph/recording of § 87(2)(b)	C . Unsubstantiated

Case Summary

On November 4, 2018, § 87(2)(b) filed the following complaint with the CCRB via the on-line website. On November 4, 2018, at approximately 10:50 a.m., § 87(2)(b) was operating his vehicle as an § 87(2)(b) on the Bronx River Highway, near Exit 4, in the Bronx. While driving, § 87(2)(b) swerved to avoid hitting an unmarked police vehicle that stopped short ahead. § 87(2)(b) drove around the unmarked vehicle and yelled at the occupants. Detective Kevin Golden and Detective Natasha Donalds of the 40th Precinct Detective Squad called § 87(2)(b) a “stupid motherfucker” and told him to “shut the fuck up” (**Allegation A and Allegation B: Discourtesy, Unfounded**). § 87(2)(b) followed behind the unmarked vehicle and at a stop light, Detective Donalds began to either photograph or record § 87(2)(b) (**Allegation C: Abuse of Authority, Unsubstantiated**) before the unmarked vehicle drove away. No summonses were issued or arrests were made during the incident.

There is no video footage capturing the incident.

Findings and Recommendations

Allegation A- Discourtesy: Detective Kevin Golden spoke discourteously to § 87(2)(b)

Allegation B-Discourtesy: Detective Natasha Donalds spoke discourteously to § 87(2)(b)

It is undisputed that § 87(2)(b) was operating his vehicle as an § 87(2)(b) on the Bronx River Highway. There were two female occupants in the back seat, one of whom was identified as § 87(2)(b). It is undisputed that an unmarked police vehicle, occupied by Det. Golden and Det. Donalds, were ahead of § 87(2)(b)'s vehicle. It is undisputed that the unmarked vehicle either slowed down or stopped briefly to speak to a marked vehicle in a nearby lane; after speaking to the marked vehicle, the unmarked vehicle continued to drive on the highway. It is undisputed that § 87(2)(b) and his occupants began to yell out of the windows at the unmarked vehicle. § 87(2)(g)

§ 87(2)(b) testified (Board Review 1) that the unmarked vehicle braked suddenly, causing him to swerve into the right shoulder to avoid an accident. The unmarked vehicle did not activate any lights or sirens. The unmarked vehicle conversed with a marked vehicle for approximately 15 to 20 seconds before continuing to drive the speed limit. § 87(2)(b) moved to the lane left of the unmarked vehicle and yelled out of his vehicle's window. § 87(2)(b)'s occupants were also yelling out of the window at the unmarked vehicle. Det. Golden, who was the driver of the unmarked vehicle, replied that § 87(2)(b) was a “stupid motherfucker” and to “Shut the fuck up.” Det. Donalds, who was seated in the front passenger seat, also called § 87(2)(b) a “stupid motherfucker” and told him to “shut the fuck up.” § 87(2)(b) estimated the two vehicles were approximately 10 feet away from each other when the verbal exchange occurred. In his telephone statement (Board Review 2), § 87(2)(b) alleged the officers yelled that it was “his fucking fault,” “fuck you,” and “you should have fucking done this.”

§ 87(2)(b) who was a backseat passenger in the § 87(2)(b) provided a telephone statement (Board Review 5). § 87(2)(b) denied Det. Golden or Det. Donalds verbally responded to the statements made by § 87(2)(b) or his occupants and clarified that there was no verbal exchange between the two occupants of the vehicles.

Det. Golden (Board Review 3) and Det. Donalds (Board Review 4) both testified that they had slowed down to see if a marked vehicle needed assistance. Det. Golden activated the unmarked vehicle's turret lights. After confirming that no assistance was needed, they continued to drive along the Bronx River Highway. A vehicle drove up on the left-hand side and all the occupants appeared to be screaming out the windows at their vehicle. Neither officer could hear what was being yelled. Neither officer believed there was any verbal exchange between the occupants of the two vehicles. Both Det. Golden and Det. Donalds denied making the discourteous language allegations and denied hearing each other make such statements.

§ 87(2)(b) who was a backseat passenger in the Uber, provided a telephone statement (Board Review 5). § 87(2)(b) denied Det. Golden or Det. Donalds verbally responded to the statements made by § 87(2)(b) or his occupants and clarified that there was no verbal exchange between the two vehicles.

§ 87(2)(g)

Therefore, it is recommended that **Allegation A** and **Allegation B** be closed as **Unfounded**.

Allegation C- Abuse of Authority: Detective Natasha Donalds took a photograph/recording of § 87(2)(b)

It is undisputed that § 87(2)(b) continued to follow next to the unmarked vehicle while on the Bronx River Highway. The unmarked vehicle and § 87(2)(b)'s vehicle both exited at Exit 4. While at a stop light, § 87(2)(b)'s vehicle was to the right of the unmarked vehicle. It is undisputed that Det. Donalds held her cellular phone up to the front passenger window and in the direction of § 87(2)(b)'s vehicle. § 87(2)(g)

§ 87(2)(b) testified (Board Review 1) that Det. Donalds held her phone against the window for approximately 45 seconds, and appeared to be holding down a button on the phone with her finger.

In her telephone statement, § 87(2)(b) (Board Review 5) also alleged Det. Donalds held her phone up to the window for an extended period of time.

Det. Donalds testified (Board Review 4) that she observed the occupants of § 87(2)(b)'s vehicle recording. Det. Donalds placed her cellular phone to the window, as if to mimic the

occupants. Det. Donalds denied taking any photographs or video recordings. Det. Donalds stated that there was no purpose for her actions.

Det. Golden testified (Board Review 3) and denied seeing Det. Donalds take any photographs or video recordings while holding her phone up to the window.

A request for any photographs of video recordings from Det. Golden's department issued cell phone returned negative results (Board Review 6).

§ 87(2)(g)

Therefore, it is recommended that **Allegation C** be closed as **Unsubstantiated**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 7).
- Det. Golden has been a member-of-service for 10 years and this is the first CCRB complaint to which he has been a subject (Board Review 8).
- Det. Donalds has been a member of service for 19 years and has been a subject in six CCRB complaints and eight allegations, none of which were substantiated. § 87(2)(g)

Mediation, Civil and Criminal Histories

- On January 23, 2019, this case was sent to mediation and on March 13, 2019 the case was returned to investigation as the complaint was no longer eligible for mediation.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- On April 3, 2019, a request was sent to the Office of the New York City Comptroller for any notice of claim filed by § 87(2)(b). The results will be added to the case file upon their receipt.

Squad No.: _____

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date